

26STCV00566 26STCV00566

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Case Number: 26STCV00566 Hearing Date: September 9, 2026 Dept: 408

1.

Plaintiff Gwen A.

Wheat's Motion to Strike Portions of Defendants Carrington Mortgage Services and Celink's General Denial is DENIED.

2.

Plaintiff Gwen A.

Wheat's Motion for Judgment on the Pleadings is DENIED.

I.

BACKGROUND

On January 7, 2026, Plaintiff Gwen A. Wheat ("Plaintiff") filed a complaint against Defendants Carrington Mortgage Services ("Carrington"), Reverse Mortgage Funding, LLC ("Reverse"), Celink, Maverick Funding Corp. ("Maverick"), and Shining Starz Investment, LLC ("Shining", collectively "Defendants") alleging causes of action for:

1.

Wrongful

Foreclosure;

2.

Declaratory

Relief;

3.

Quiet

Title;

4.

Fraud

in the Execution/Fraud in the Factum;

5.

Violation

of California Civil Code § 2924.17;

6.

Unfair

Business Practices, Civil Business & Professions Code § 17200;

7.

Negligent

Representation;

8.

Intentional

Infliction of Emotional Distress;

9.

Unjust

Enrichment; and

10. Financial Elder

Abuse (California Welf. & Inst. Code § 15610.30).

On March 17, 2026,

Plaintiff filed a First Amended Complaint ("FAC").

On April 24, 2026,

pursuant to Plaintiff's request, default was entered against Reverse.

On April 28, 2026,

pursuant to Plaintiff's request, default was entered against Maverick.

On April 29, 2026, the court denied Plaintiff's Motion for Preliminary Injunction as moot.

On June 2, 2026,
pursuant to Plaintiff's request, default was entered against Shining.

On June 9, 2026, the court overruled Carrington's Demurrer to Plaintiff's
complaint as moot.

On June 22, 2026, Carrington and Celink filed a General Denial to
Plaintiff's FAC.

On July 2, 2026, Plaintiff filed this Motion to Strike portions of
Carrington and Celink's General Denial to Plaintiff's FAC. On August 26, 2026, Carrington
and Celink ("Opposing Defendants") filed an opposition.[1]
On September 3, 2026, Plaintiff filed a reply.

On July 6, 2026, Plaintiff filed this Motion for Judgment on the
Pleadings. On August 26, 2026, Opposing Defendants filed an opposition. On September
2, 2026, Plaintiff filed a reply.

On July 29, 2026, the court granted Shining's Motion to Quash Service of
Summons and Complaint and vacated the default entered against Shining.

II.

MOTION TO STRIKE

A. Legal Standard

Pursuant to Code of Civil Procedure section
436, "the court may, upon a motion made pursuant to Section 435, or at any time
in its discretion, and upon terms it deems proper: (a) Strike out any
irrelevant, false, or improper matter inserted in any pleading. (b) Strike out
all or any part of any pleading not drawn or filed in conformity with the laws
of this state, a court rule, or an order of the court." (Code Civ. Proc., §
436.) The grounds for a motion to strike must "appear on the face of the
challenged pleading or from any matter of which the court is required to take
judicial notice." (Code Civ. Proc., § 437.)

B. Discussion

Plaintiff moves to

strike the affirmative defenses of res judicata, collateral estoppel, failure to do equity, and unclean hands from Opposing Defendants' General Denial. (Motion, at p. 3.) Plaintiff argues that such defenses are legally invalid and cannot be maintained as a matter of law. (Ibid.) As to res judicata and collateral estoppel, Plaintiff argues that Opposing Defendants cannot meet the elements required to support a preclusion defense. (Id., at pp. 3-4.) As to failure to do equity and unclean hands, Plaintiff argues that Opposing Defendants cannot allege any misconduct by Plaintiff. (Id., at pp. 4-5.)

The court finds that Plaintiff failed to demonstrate any "irrelevant, false, or improper matter" inserted in Opposing Defendants' General Denial subject to strike. Whether Plaintiff disputes the merits of the asserted affirmative defenses is a matter outside the scope of a motion to strike. The court does not find that the grounds provided to strike appear on the face of the General Denial.

Accordingly, the motion is denied.

III.

MOTION FOR JUDGMENT ON THE PLEADINGS

A. Legal Standard

"A party may move for judgment on the pleadings." (Code Civ. Proc., § 438, subd. (b)(1).) "The motion provided for in this section may only be made on one of the following grounds: ... (A) If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (B) If the moving party is a defendant, that either of the following conditions exist: (i) The court has no jurisdiction of the subject of the cause of action alleged in the complaint. (ii) The complaint does not state facts sufficient to constitute a cause of action against that defendant." (Code Civ. Proc., § 438, subd. (c)(1)(A)-(B).)

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 [citations omitted].) "In deciding or reviewing a judgment

on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged.” (Fire Ins. Exch. v. Super. Ct. (2004) 116 Cal.App.4th 446, 452.)

B. Discussion

Plaintiff moves for judgment on the pleadings on the grounds that the FAC states sufficient facts to constitute the causes of action asserted against Defendants, and Opposing Defendants’ General Denial does not state facts sufficient to constitute a defense to the FAC. (Motion, at p. 3.)

“A plaintiff’s motion for judgment on the pleadings is analogous to a plaintiff’s demurrer to an answer and is evaluated by the same standards. The motion should be denied if the defendant’s pleadings raise a material issue or set up affirmative matter constituting a defense; for purposes of ruling on the motion, the trial court must treat all of the defendant’s allegations as being true.” (People ex rel. Becerra v. Superior Court (2018) 29 Cal.App.5th 486, 499.) A demurrer to an answer must be overruled if any defense to the complaint is properly alleged. (South Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733–734 [demurrer to answer properly overruled based on sufficiently pled general denial][“if one of the defenses or counterclaims is free from the objections urged by demurrer, then a demurrer to the entire answer must be overruled”].)

An answer fails to raise any material issue or state a defense where it expressly or substantially admits or does not sufficiently deny all the material allegations of the complaint and sets up no new matter that is sufficient to bar or defeat the action. (Adjustment Corp. v. Hollywood Hardware & Paint Co. (1939) 35 Cal.App.2d 566, 569-570.) Thus, a general denial contained in the answer requires that the entire demurrer be overruled. (People ex rel. Becerra, supra, 29 Cal.App.5th at 499 [discussing motion for judgment on the pleadings based on failure to state facts to constitute a defense]; Engine Manufacturers Assn. v. State Air Resources Bd. (2014) 231 Cal.App.4th 1022, 1034 [motion for judgment on the pleadings must be denied if “defendant’s pleadings raise a material issue or set up affirmative matter constituting a

defense”]; Allstate Ins. Co., supra, 160 Cal.App.3d at 331 [motion for judgment on the pleadings should be denied if answer either contains general denial or states facts in support of affirmative defenses]; Barasch v. Epstein (1957) 147 Cal.App.2d 439, 443 [“[w]here the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted”].)

The court finds that Plaintiff fails to establish entitlement to judgment on the pleadings as Opposing Defendants filed a General Denial placing at issue all material allegations of the FAC. (Code Civ. Proc., § 431.30, subd. (d).) Plaintiff improperly requests that the court to enter judgment in favor of Plaintiff awarding the damages sought in the FAC through a motion for judgment on the pleadings. As such, Plaintiff’s motion is procedurally improper.

Accordingly, the motion is denied.[2]

IV.

CONCLUSION

1.

Plaintiff Gwen A. Wheat’s Motion to Strike Portions of Defendants Carrington Mortgage Services and Celink’s General Denial is DENIED.

2.

Plaintiff Gwen A. Wheat’s Motion for Judgment on the Pleadings is DENIED.

[1] Opposing

Defendants contend that Plaintiff failed to meet and confer prior to filing the instant motions. The court will not address such arguments and exercises its discretion to consider the motion to strike and motion for judgment on the pleadings on the merits despite any alleged deficiencies in the meet and confer process.

[2] The

court denies the parties’ requests for judicial notice. (People v. McKinzie (2012) 54 Cal.4th 1302, 1326, 144 Cal.Rptr.3d 427, 281 P.3d 412 [court will take judicial notice of only relevant matters].)